

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 2, 2026
8:30 AM/1:30 PM

6. TASHA HOYT V. MICHAEL HOYT

25FL0460

Petitioner filed a Request for Order (RFO) on June 4, 2025, seeking parenting plan orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on July 2, 2025. Respondent was personally served on June 5, 2025.

Petitioner also filed an RFO in case number 25FL0458 seeking child support, spousal support, and attorney's fees.

Both parties had filed Domestic Violence Restraining Order (DVRO) requests which were set to be heard on September 9th. Given the pending DVRO requests, CCRC recommended the parties be re-referred upon resolution of the restraining order issues.

At the September 9th hearing, the court granted Petitioner's DVRO request and denied Respondent's. The parties were re-referred to CCRC, and a hearing was set for November 20th on the issues of custody, property control, child/spousal support, and attorney's fees. At the November 20th hearing, the court ordered a civil stand-by for Respondent to retrieve her personal property and the parties stipulated to continue all issues to the present date.

Respondent filed his Income and Expense Declaration on October 21st along with an RFO seeking property control orders and sanctions. The RFO was originally filed ex parte therefore Petitioner filed her Responsive Declaration to Request for Orders the same day the RFO was filed.

The parties attended CCRC on October 1st and were unable to reach any agreements. As such, a report with custody and visitation recommendations was prepared on November 6th and sent to the parties on November 7th.

The parties attended the hearing on the pending RFOs December 18, 2025 at which time they reached a stipulation on all issues. As part of that stipulation the court set a review hearing for the present date.

On March 23, 2023, Respondent filed and served an Updating Declaration.

Also on March 23rd, Petitioner filed and served her Income and Expense Declaration. She filed and served her Reply Declaration to Respondent's Updating Declaration on March 25th.

On March 26th, Respondent filed and served an Attorney Declaration.

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Respondent asks the court to make a finding that he has overcome the § 3044 presumption. He requests joint legal custody and 50/50 physical custody utilizing a 2/2/3 plan. He also asks the court to set a holiday schedule. Finally, he asks that Petitioner be ordered to allow Respondent access to the home to gather his possessions.

Petitioner is renewing her request for child support, spousal support and attorney's fees. She further asks the court to maintain the current visitation schedule and order her proposed holiday schedule. She further requests an order for Respondent to immediately bring all past-due accounts current and provide a current statement for the car, mortgage, and utilities. She asks that Respondent be ordered to pay the children's extracurricular activities and reimburse Petitioner \$994.98 for tires and a cheer deposit she paid.

The requests regarding the tires, the cheer deposit, payment of the extracurricular activities, and payment of all past-due accounts are outside the scope of the current review hearing and therefore a new RFO must be filed to address those issues.

The parties are ordered to appear on the issues of custody, visitation, holidays and the § 3044 presumption. The parties are also ordered to appear on the issues of child and spousal support. Respondent is ordered to bring with him a completed Income and Expense Declaration with the required supporting documents.

TENTATIVE RULING #6: THE REQUESTS REGARDING THE TIRES, THE CHEER DEPOSIT, PAYMENT OF THE EXTRACURRICULAR ACTIVITIES, AND PAYMENT OF ALL PAST-DUE ACCOUNTS ARE OUTSIDE THE SCOPE OF THE CURRENT REVIEW HEARING AND THEREFORE A NEW RFO MUST BE FILED TO ADDRESS THOSE ISSUES.

THE PARTIES ARE ORDERED TO APPEAR ON THE ISSUES OF CUSTODY, VISITATION, HOLIDAYS AND THE § 3044 PRESUMPTION. THE PARTIES ARE ALSO ORDERED TO APPEAR ON THE ISSUES OF CHILD AND SPOUSAL SUPPORT. RESPONDENT IS ORDERED TO BRING WITH HIM A COMPLETED INCOME AND EXPENSE DECLARATION WITH THE REQUIRED SUPPORTING DOCUMENTS.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON

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**THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE
8.05.07.**